

SPECIAL PROVISIONS RELATING TO CERTAIN CLASSES

PART XVI AS A → SC/ST LEGISLATIVE SEATS AND → WOMEN RESERVATION AND ARTICLE → ANGLO-INDIAN HISTORY AND POLITICAL-RESERVATION → ARTICLE 335: REPRESENTATION WITH → COMMISSIONS, UNION CONTROL AND

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW Approval: FALSE • Pending user review • active generation g2 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 PART XVI AS A FOUR-PART CONSTITUTIONAL ARCHITECTURE

PART XVI AS A FOUR-PART CONSTITUTIONAL ARCHITECTURE ROOT QUESTION

HOW DOES PART XVI COMBINE INCLUSION WITHOUT USING ONE

ARTS 330-334A.

ART 335.

ARTS 338-340.

ARTS 341-342A.

ART 275 GRANTS

CONSTITUTIONAL BASIS / ARTICLE

- ROOT QUESTION
- How does Part XVI combine inclusion without using one legal mechanism?
- REPRESENTATION → Arts 330-334A.

POWER / PROCEDURE

- SERVICES → Art 335.
- COMMISSIONS / CONTROL → Arts 338-340.
- IDENTIFICATION → Arts 341-342A.

CHECK / LIMIT

- Art 275 grants
- Arts 243D/243T local seats
- Fifty/Sixth Schedule administration.

FEDERAL / RIGHTS IMPACT

- VERDICT list != quota != commission report != welfare scheme.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Identification, representation, service claims, welfare finance and area administration occupy different constitutional layers, so one cannot be inferred automatically from another.

01

STAGE 01 SC/ST LEGISLATIVE SEATS AND ORDINARY TERRITORIAL VOTING

SC/ST LEGISLATIVE SEATS AND ORDINARY TERRITORIAL VOTING

LOK SABHA

ART 330

SC/ST RESERVED SEATS LINKED BROADLY TO POPULATION.

STATE ASSEMBLIES

ART 332

SC/ST RESERVED SEATS + SPECIFIED NORTH-EAST PROVISIONS.

ELECTION RESERVED CANDIDACY/SEAT

LOK SABHA
→ Art 330 → SC/ST reserved seats linked broadly to population. → STATE ASSEMBLIES → Art 332 → SC/ST reserved seats + specified North-East provisions. → ELECTION reserved candidacy/seat → ordinary territorial electorate votes.

CONSTITUTIONAL BASIS / ARTICLE

- LOK SABHA
- Art 330 → SC/ST reserved seats linked broadly to population.

POWER / PROCEDURE

- STATE ASSEMBLIES
- Art 332 → SC/ST reserved seats + specified North-East provisions.

CHECK / LIMIT

- ELECTION reserved candidacy/seat → ordinary territorial electorate votes.
- TRAP political reservation != separate electorate representation != Article 341/342 list alteration.

FEDERAL / RIGHTS IMPACT

- LOK SABHA
- Art 330 → SC/ST reserved seats linked broadly to population.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Reservation identifies constituencies/seats; it does not create a separate electorate—voters in the constituency vote in the ordinary territorial election.

02

STAGE 02 WOMEN RESERVATION AND ARTICLE 334A ACTIVATION CHAIN

WOMEN RESERVATION AND ARTICLE 334A ACTIVATION CHAIN

106TH AMENDMENT TEXT

ARTS 330A + 332A + 334A.

FIRST CENSUS AFTER COMMENCEMENT

RELEVANT FIGURES PUBLISHED DELIMITATION EXERCISE

ELECTORAL OPERATION ROTATION AFTER SUBSEQUENT DELIMITATION AS PARLIAMENT PROVIDES.

WITHIN SC/ST SEATS WOMEN SHARE INCLUDED IN CONSTITUTIONAL DESIGN. TRAP INSERTED/COMMENCED

106TH AMENDMENT TEXT
→ Arts 330A + 332A + 334A. → first census after commencement → relevant figures published delimitation exercise → electoral operation rotation after → Parliament provides. → WITHIN SC/ST SEATS women share included in constitutional design.

CONSTITUTIONAL BASIS / ARTICLE

- 106TH AMENDMENT TEXT
- Arts 330A + 332A + 334A.

POWER / PROCEDURE

- first census after commencement → relevant figures published delimitation exercise → electoral operation rotation after subsequent delimitation as
- Parliament provides.

CHECK / LIMIT

- WITHIN SC/ST SEATS women share included in constitutional design.
- TRAP inserted/commenced != presently operational.

FEDERAL / RIGHTS IMPACT

- 106TH AMENDMENT TEXT
- Arts 330A + 332A + 334A.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The 106th Amendment placed the provisions in the Constitution, but Art 334A links their operation to a delimitation exercise undertaken after publication of the relevant figures of the first census taken after commencement of the amendment.

03

STAGE 03 ANGLO-INDIAN HISTORY AND POLITICAL-RESERVATION CLOCK

ANGLO-INDIAN HISTORY AND POLITICAL-RESERVATION CLOCK

ARTS 331

333 HISTORICAL ANGLO-INDIAN NOMINATION PROVISIONS REMAIN PRINTED.

ARTICLE 334

SC/ST SEAT RESERVATION

EXTENDED TO EIGHTY YEARS FROM COMMENCEMENT.

ANGLO-INDIAN NOMINATION

NOT EXTENDED BEYOND SEVENTY YEARS

CONSTITUTIONAL BASIS / ARTICLE
ARTS 331 / 333 historical Anglo-Indian nomination provisions remain printed.
ARTICLE 334

POWER / PROCEDURE
SC/ST seat reservation → extended to eighty years from commencement.
Anglo-Indian nomination → not extended beyond seventy years → ceased in 2020.

CHECK / LIMIT
ARTS 336 / 337 services and educational-grant transitions → exhausted after ten years.
TRAP time-clause cessation != necessary textual omission.

FEDERAL / RIGHTS IMPACT
ARTS 331 / 333 historical Anglo-Indian nomination provisions remain printed.
ARTICLE 334

- ARTS 331 / 333 historical Anglo-Indian nomination provisions remain printed.
- ARTICLE 334

- SC/ST seat reservation → extended to eighty years from commencement.
- Anglo-Indian nomination → not extended beyond seventy years → ceased in 2020.

- ARTS 336 / 337 services and educational-grant transitions → exhausted after ten years.
- TRAP time-clause cessation != necessary textual omission.

- ARTS 331 / 333 historical Anglo-Indian nomination provisions remain printed.
- ARTICLE 334

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Articles 331 and 333 remain printed in the constitutional text, but the special nomination period under Article 334 was not extended beyond seventy years and ceased in 2020.

04

STAGE 04 ARTICLE 335: REPRESENTATION WITH ADMINISTRATIVE EFFICIENCY

ARTICLE 335 REPRESENTATION WITH ADMINISTRATIVE EFFICIENCY

SC/ST CLAIMS IN UNION/STATE SERVICES MAINTENANCE OF ADMINISTRATIVE EFFICIENCY.

82ND AMENDMENT PROVISO QUALIFYING-MARK/EVALUATION RELAXATION FOR PROMOTION RESERVATION MAY

M. NAGARAJ (2006)

PROMOTION-ENABLING PROVISIONS WITH CONSTITUTIONAL CONDITIONS.

JARNAIL SINGH (2018)

MODIFIES DATA RULE AND APPLIES CREAMY-LAYER LOGIC.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 335
- SC/ST claims in Union/State services maintenance of administrative efficiency.

POWER / PROCEDURE

- 82ND AMENDMENT PROVISO qualifying-mark/evaluation relaxation for promotion reservation may be provided.
- M. Nagaraj (2006) → promotion-enabling provisions with constitutional conditions.

CHECK / LIMIT

- Jarnail Singh (2018) → modifies data rule and applies creamy-layer logic.
- Art 335 is not a fixed quota or the source of OBC/EWS reservation.

FEDERAL / RIGHTS IMPACT

- ARTICLE 335
- SC/ST claims in Union/State services maintenance of administrative efficiency.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Evidence-based sub-classification requires inadequate representation or unequal benefit capture, preservation of class integrity and continuing judicial review.

05

STAGE 05 COMMISSIONS, UNION CONTROL AND WELFARE GRANTS

COMMISSIONS, UNION CONTROL AND WELFARE GRANTS

ART 338

ART 338A

ART 338B

REPORTS + COMPLAINTS + SAFEGUARDS + CIVIL-COURT INQUIRY POWERS

ADVICE, NOT BINDING JUDGMENT.

ART 339

PRESIDENTIAL COMMISSION + UNION DIRECTIONS ON SCHEDULED AREAS/ST WELFARE

ART 338A → NCST → ART 338B → NCBC. → reports + complaints + safeguards + civil-court inquiry powers → advice, not binding judgment.

CONSTITUTIONAL BASIS / ARTICLE

- ART 338 → NCSC
- ART 338A → NCST
- ART 338B → NCBC.

POWER / PROCEDURE

- reports + complaints + safeguards + civil-court inquiry powers → advice, not binding judgment.
- ART 339
- Presidential commission + Union directions on Scheduled Areas/ST welfare.

CHECK / LIMIT

- ART 340 temporary backward-class investigation commission.
- ART 275 specified ST welfare/Scheduled Area grant route.
- TRAP commission power != court

FEDERAL / RIGHTS IMPACT

- fiscal grant != list alteration.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Civil-court powers during investigation do not make recommendations binding or convert the commissions into courts.

06

STAGE 06 LIST SPECIFICATION AND THE 102ND-105TH AMENDMENT SEQUENCE

LIST SPECIFICATION AND THE 102ND-105TH AMENDMENT SEQUENCE

ARTS 341

PRESIDENT SPECIFIES STATE/UT SC/ST LIST

PARLIAMENT INCLUDES/EXCLUDES.

102ND AMENDMENT

ARTS 338B + 342A

CONSTITUTIONAL NCBC/CENTRAL LIST ARCHITECTURE.

JAISHRI LAXMANRAO PATIL (2021) INTERPRETS THE PRE-105TH TEXT.

ARTS 341 / 342
→ President specifies State/UT SC/ST list → Parliament includes/excludes. → 102ND AMENDMENT → Arts 338B + 342A → constitutional NCBC/Central List architecture. → Jaishri Laxmanrao Patil (2021) interprets the pre-105th text.

CONSTITUTIONAL BASIS / ARTICLE

- ARTS 341 / 342
- President specifies State/UT SC/ST list → Parliament includes/excludes.
- 102ND AMENDMENT

POWER / PROCEDURE

- Arts 338B + 342A → constitutional NCBC/Central List architecture.
- Jaishri Laxmanrao Patil (2021) interprets the pre-105th text.
- 105TH AMENDMENT

CHECK / LIMIT

- Central List for Central purposes
- State/UT list by law for own purposes.
- State SEBC list power != State power to alter SC/ST lists.

FEDERAL / RIGHTS IMPACT

- Arts 338B + 342A → constitutional NCBC/Central List architecture.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The decision does not command every State to sub-classify or authorise exclusion that destroys the protected class.

07

STAGE 07 SUB-CLASSIFICATION, LOCAL BODIES AND OWNER BOUNDARIES

SUB-CLASSIFICATION, LOCAL BODIES AND OWNER BOUNDARIES

E.V. CHINNAIAH V. STATE OF ANDHRA PRADESH (2004) EARLIER

V OVERRULED

DAVINDER SINGH (2024) EVIDENCE-BASED DISTRIBUTION WITHIN NOTIFIED SC CLASS

BOUNDARY SUB-CLASSIFICATION

INCLUSION/EXCLUSION UNDER ART 341.

LOCAL BODY

ARTS 243D/243T

E.V. Chinnaiah v. State of Andhra Pradesh (2004) earlier rule against SC sub-classification. → Davinder Singh (2024) evidence-based distribution within notified SC class may be designed. → BOUNDARY sub-classification != inclusion/exclusion under Art 341.

CONSTITUTIONAL BASIS / ARTICLE

- E.V. Chinnaiah v. State of Andhra Pradesh (2004) earlier rule against SC sub-classification.
- v overruled

POWER / PROCEDURE

- Davinder Singh (2024) evidence-based distribution within notified SC class may be designed.
- BOUNDARY sub-classification != inclusion/exclusion under Art 341.

CHECK / LIMIT

- LOCAL BODY
- Arts 243D/243T → separate reservation route.

FEDERAL / RIGHTS IMPACT

- AREA ADMINISTRATION / SCHEMES exact Schedule, statute, budget or policy controls.
- E.V. Chinnaiah v. State of Andhra Pradesh (2004) earlier rule against SC sub-classification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Davinder Singh (2024) permits evidence-based sub-classification within a notified Scheduled Caste group, while list alteration remains with the Article 341 constitutional process.

08

STAGE 08 UPSC SYNTHESIS: IDENTIFY THE EXACT CONSTITUTIONAL TECHNIQUE

UPSC SYNTHESIS

IDENTIFY THE EXACT CONSTITUTIONAL TECHNIQUE

PRELIMS FIREWALL

330/332 SEATS

334 CLOCK

335 SERVICES

338-SERIES COMMISSIONS

339 CONTROL

PRELIMS FIREWALL → 330/332 seats → 334 clock → 335 services → 338-series commissions

CONSTITUTIONAL BASIS / ARTICLE

- PRELIMS FIREWALL
- 330/332 seats
- 334 clock
- 335 services

POWER / PROCEDURE

- 338-series commissions
- 339 control
- 340 inquiry
- 341/342/342A lists

CHECK / LIMIT

- 275 grant cross-link.
- MAINS SPINE architecture → representation → time/activation → services
- safeguards → list federalism → Davinder boundary → owner-scope conclusion.
- PYQ ROUTE

FEDERAL / RIGHTS IMPACT

- Article 335
- women's reservation
- constitutional NCBC.
- VERDICT substantive equality uses distinct constitutional tools with distinct legal effects.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Commission inquiry powers do not become adjudication, expired transitions do not remain current benefits, and list status alone does not establish entitlement.

E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

RECOGNITION THROUGH ARTS 341, 342 AND 342A

REPRESENTATION THROUGH ARTS 330-334A; AND

OVERSIGHT/CLAIMS THROUGH ARTS 335 AND 338-340.

THIS FILE ADDS ANALYTICAL DEPTH WITHOUT REPLACING SPECIALIST COMMISSION

REDISTRIBUTIVE OUTCOMES, HOWEVER, ALSO DEPEND ON ARTS 15-16, LEGISLATION

THIS EXPLAINS WHY LIST STATUS DOES NOT ITSELF DETERMINE

FEDERAL DIFFERENTIATION SC/ST LIST ALTERATION REMAINS PARLIAMENTARY UNDER ARTS

OPTIONAL DOCTRINE / CASE

- recognition through Arts 341, 342 and 342A;
- representation through Arts 330-334A; and
- oversight/claims through Arts 335 and 338-340.
- This file adds analytical depth without replacing specialist commission, reservation-doctrine or Scheduled-Area owners.

ADVANCED LIMIT

- Redistributive outcomes, however, also depend on Arts 15-16, legislation, budget, delimitation, service rules and welfare programmes.
- This explains why list status does not itself determine the kind or quantum of benefit.
- Federal differentiation SC/ST list alteration remains parliamentary under Arts 341-342.
- SEBC architecture is expressly dual after the 105th Amendment: a Central List for Central purposes and State/UT lists for their purposes.

COMPARATIVE NUANCE

- Federal differentiation may improve local responsiveness but demands transparent criteria and reliable data.
- Sub-classification after Davinder Singh (2024) The constitutional issue is distribution within a notified class, not list alteration.
- Duration and democratic renewal Repeated Article 334 extensions show that political reservation is constitutionally time-framed but periodically renewed
- through amendment.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.